

VERSION	EFFECTIVE	NEXT REVIEW	OWNER	APPROVED BY
1.0			Principal / Key Management Personnel	Governing body

PURPOSE AT A GLANCE

This policy explains how [redacted] es participant information so that it is identifiable, accurately recorded, current and confidential — how consent is obtained, how information is stored, secured, accessed, corrected, retained and disposed of, and who it may be disclosed to.

1. Purpose and scope

2. Policy aims

- each participant's consent is obtained to collect, use, retain or disclose their information, with details of the purpose, and each participant is told when information could be disclosed without consent if required or authorised by law;
- each participant is informed how their information is stored and used, and how and when they can access or correct it or withdraw or amend consent; and
- an information management system is maintained that is proportionate to the size and scale of the organisation, records information accurately and promptly, and stores documents with appropriate use, access, transfer, storage, security, retrieval, retention, destruction and disposal processes.

A participant's consent is obtained to collect, use, retain or disclose their information, including assessments, with details of the purpose. Consent is recorded in the Privacy Consent Form, which forms part of the Services Agreement, and which informs participants that information could be disclosed without consent if required or authorised by law. This policy is applied together with the Privacy and Dignity Policy.

Information in hard-copy documents, electronic databases, email contact lists and locked paper files; archived files may be stored offsite in secure facilities. Security measures include encryption, firewalls and anti-virus software, login and password protection on systems and cloud storage, controlled access to premises, restricting use to workers with a legitimate need to know, and training.

Reasonable steps to keep information accurate, up to date, complete and relevant; to

protect it from misuse, interference, loss and unauthorised access; and to destroy or permanently de-identify information no longer needed, subject to legal retention requirements.

When handling personal information, workers only access and use it for a valid work purpose; confirm recipient details before sending; store hard copies not in use securely and limit removing them from secure sites; are aware of their surroundings; dispose of unneeded copies securely; and only share information as permitted by this policy and by law.

5. Disclosure, access, correction and retention

[] disclose personal information, where appropriate, to funding providers; government and regulatory bodies (the NDIA, Services Australia, health departments and the ATO); people acting on the participant's behalf; police, the NDIS Commission or courts under compulsory notice; financial institutions for payment processing; and contracted service providers. Participants have a right to request access to, or correction of, the information held about them, and identity may be verified before a request is processed. Unless the law requires otherwise, participant records are retained for at least seven years after the person ceases to be a participant.

6. Breaches

An actual or suspected breach of a participant's privacy is reported and managed under the Incident Management and Reporting Policy and, as applicable, notified to the relevant health department, the NDIS Commission and the Office of the Australian Information Commissioner within one business day.

7. Definitions

[]
[] [] [] []

Client

A client of [] ng an NDIS participant.

Key Management Personnel (KMP)

[] her key management personnel involved in [] ne to time.

Principal

[]

Legislation Register

The register of legislation, regulations, rules and guidelines maintained by []

Policy Register

The register of policies of []

Worker

A permanent, fixed-term or casual member of staff, a contractor or a volunteer engaged by [] ng the Principal.

Personal information

Information or an opinion about an identified or reasonably identifiable individual, whether true or not and whether recorded in a material form or not.

Sensitive information

A subset of personal information given higher protection, including health and genetic information and information about racial or ethnic origin, political or religious beliefs, association memberships, sexual orientation, criminal record and some biometric information.

8. Related documents and approval

Related documents: Privacy and Dignity Policy · Privacy Consent Form · Services Agreement · Incident Management and Reporting Policy · Document Register · Legislation Register · Legislation Register · Policy Register.

Legislation and rules: as set out in the Legislation Register. If any part of this policy is inconsistent with applicable law, it is taken to be amended only to the extent needed to comply.

Approved by	
Approval date	
Next scheduled review	
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